

Amendment No. 1 to SB0376

White
Signature of Sponsor

AMEND Senate Bill No. 376

House Bill No. 377*

by deleting all language after the enacting clause and substituting instead the following:

SECTION 1. Tennessee Code Annotated, Title 49, Chapter 7, Part 1, is amended by adding the following as a new section:

49-7-190.

(a) As used in this section, "institution" means a four-year public or private institution of higher education located in this state.

(b) A person must not be excluded from participating in, denied the benefits of, or subjected to discrimination by an institution, or any program or activity at an institution, on the basis of one's race, color, ethnicity, or national origin, including those resulting from affirmative action practices.

(c) An institution, a program or activity at an institution, or an officer, employee, or agent of an institution, shall not exclude a person from participating in, deny a person the benefits of, or subject a person to discrimination at the institution based on the person's race, color, ethnicity, or national origin, as prohibited by this section.

(d) An institution shall not consider an applicant's race, color, ethnicity, or national origin in determining whether the applicant qualifies for admission to the institution, or for scholarships or financial aid offered at the institution. Institutions shall not use aggregated data to develop admissions or student population quotas based on race, color, ethnicity, or national origin, or use any such data in making admissions decisions. An institution is not prohibited from awarding different scholarships to students, or the same scholarship to students in different amounts, so long as the

scholarship awarded or the scholarship amount awarded is not solely based on the student's race, color, ethnicity, or national origin.

(e) Each institution shall provide notice of this section and of any relevant policies adopted by the institution in response to this section to all:

(1) Employees of the institution's central admissions or financial aid offices prior to the start of the 2025-2026 academic year; and

(2) Employees of the institution's central admissions or financial aid offices upon their employment, if the employee is hired on or after the start of the 2025-2026 academic year.

(f) An individual who believes that a violation of this section has occurred may seek injunctive and declaratory relief in a court of competent jurisdiction, pursuant to § 1-3-121.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it.